

U.P. Pravidhik Shiksha (Committees and Sub-Committees, Affiliation of Institutions) Regulation, 2000

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State of Uttar Pradesh - Act

U.P. Pravidhik Shiksha (Committees and Sub-Committees, Affiliation of Institutions) Regulation, 2000

UTTAR PRADESH

India

U.P. Pravidhik Shiksha (Committees and Sub-Committees, Affiliation of Institutions) Regulation, 2000

Rule

U-P-PRAVIDHIK-SHIKSHA-COMMITTEES-AND-SUB-COMMITTEES-AFFILIATION-OF-INSTITUTIONS-REGULATION-2000 of 2000

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U.P. Pravidhik Shiksha (Committees and Sub-Committees, Affiliation of Institutions) Regulation, 2000

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In exercise of the powers under Section 23 of the Uttar Pradesh Pravidhik Shiksha Adhiniyam, 1962 (U.P. Act No. 17 of 1962). The Board of Technical Education, Uttar Pradesh hereby makes the following regulations with the approval of the State Government :

1.

Short title, extent and commencement.

(a)

These regulations may be called the Uttar Pradesh Pravidhik Shiksha (Committees and Sub-committees, Affiliation of Institutions) Regulations, 2000.

(b)

They shall apply to all committee and sub-committees constituted under Section 18 of the Act.

(c)

They shall come into force from the date of their publication in the Gazette.

2.

Definitions.

- In these regulations, unless there is anything repugnant in the subject or context,-

(a)

"Academic year" means the period of twelve months of a calendar year commencing on 1st of July to the 30th of June next following :

(b)

"Act" means the Uttar Pradesh Pravidhik Shiksha Adhiniyam, 1962 (U. P. Act No. 17 of 1962);

(c)

"Head of the Administrative Department" means the Head of the Departments under whose administrative control the affiliated institution is functioning;

(d)

"Member" means a member of the committee;

(e)

"committee" means a Committee constituted by the Board under Section 18 of the Act;

(f)

"Convener" means a person appointed to convene the meetings;

(g)

"Course of study" means a course of study prescribed by the Board;

(h)

"Principal" means the head of an affiliated institution;

(i)

"Private Candidate" means a candidate seeking admission without putting in the requisite attendance to an examination conducted by the Board for which regular attendance at an affiliated institution is prescribed;

(j)

"Session" means the period for which an affiliated institution is open for teaching during the academic year;

(k)

"Sessional marks" means the marks allotted for sessional work relating to any examination for a Class;

(l)

"Result Committee" means a committee constituted by the Board under Section 18 of the Act for the purpose of dealing with matters affecting the result of the examination conducted by the Board;

(m)

"Recognition Committee" means a committee constituted by the Board under Section 18 of the Act for the purpose of dealing with matters referred to it by the Government or the Board for awarding recognition to any course of study of an affiliated institution.

3.

Term of Committee.

(1)

The term of each committee constituted in these regulations shall be three years from the date of its constitution: Provided that a committee, after the expiry of its terms shall continue to function for an additional periods not exceeding two years or till a new Committee is duly constituted whichever is earlier.

(2)

A Member of the Board shall cease to be a Member of a Committee when he ceases to be a Member of the Board.

(3)

The term of a Member of a Committee appointed or co-opted to fill a casual vacancy shall be the remainder of the terms of the Committee.

4.

Examination Committee.

- The Examination Committee shall consist of-

(1)

Director, Technical Education, Uttar Pradesh, Lucknow.

...

Chairman

(2)

Director, Institute of Research Development and Training,
Uttar Pradesh, Kanpur

...

Member

(3)

Chief Engineer, Public Works Department or his representative
not below the rank of Superintending Engineer

...

Member

(4)

Regional Officer, All India Council of Technical Education
Northern Regional Office, Kanpur

...

Member

(5)

Three from amongst the Regular

...

Member

(6)

Principals of Affiliated

...

Member

(7)

Institutions

...

Member

(8)

A non-official nominated by the Chairman of the Board from
amongst the Members of the Board

...

Member

(9)

One Member of the Legislative Assembly of Uttar Pradesh from
amongst such Members of the Board

...

Member

(10)

One Member of the Legislative Council of Uttar Pradesh from
amongst such Members of the Board

...

Member

(11)

Secretary, Board of Technical Education. Uttar Pradesh,
Lucknow

...

Member/Secretary

5.

Duties of an Examination Committee.

- Subject to the control of the Board, it shall be the duty of the Committee :

(a)

to conduct all examinations of the Board in conformity with the regulations and to fix date for holding them:

(b)

to appoint examiners (for theory and practical), moderators, tabulators, collators, scrutinisers, observers and superintendents of centres;

(c)

to prepare time schedule for different examinations;

(d)

to fix examination fees for admission to the Examination of the Board with the approval of the State government;

(e)

to prescribe forms of application for permission to appear at an examination and forms or certificate of diplomas to be granted to successful candidates;

(f)

to recommend rates of remuneration to examiners, moderators, tabulators, collators, scrutinisers, centre observers and superintendents of centre, invigilators and other supporting staff in connection with conduct of examinations;

(g)

to fix centres of examination; and

(h)

to lay down the mode of conduction viva-voice and practical examinations.

6.

Powers of the Examination Committee.

- Without prejudice to the provisions of sub-section (1) of Section 19 of the Act and subject to control of the Board the Examination Committees shall have the power.

(a)

to constitute sub-committee to conduct inquiry in respect of any matter connected with examination and to associate with it examiners or experts of any particular subject:

(b)

to call for reports from the Principal in respect of any act or omission contravening the regulations or decisions or instructions or directions of the Board;

(c)

to extend the dates prescribed in Schedule II of the Uttar Pradesh Pravidhik Shiksha (Admission, Conduct of Examinations and Conferment of Certificates and Diplomas) Regulations, 1992;

(d)

to extend the dates prescribed in the Uttar Pradesh Pravidhik Shiksha (Admission, Conduct of Examination and Conferment of Certificates and Diplomas) Regulations, 1992 for admission to any affiliated institution if in its opinion there is necessity to do so for filling up vacancies;

(e)

to accept an application of a student to the examination of the Board beyond the last date with late fee prescribed in Schedule II of the Uttar Pradesh Pravidhik Shiksha (Admission, Conduct of Examinations and Conferment of Certificates and diplomas) Regulation, 1992; for the purpose if it is satisfied that it was beyond the control of the student to submit the application within the prescribed date:

(f)

to lay down mode of examination for any course of study other than those covered in Uttar Pradesh Pravidhik Shiksha (Admission, Conduct, of Examination and Conferment of Certificates and Diplomas) Regulations, 1992; as may be decided by the board from time to time and to fix examination rules for it;

(g)

to decide cases of unfair means covered under Regulations 29 of Uttar Pradesh Pravidhik Shiksha (Admission, Conduct of Examination and Conferment of Certificates and Diplomas) Regulations, 1992;

(h)

to refer the matter to the Head of the Administrative department for appropriate action if the Examination Committee considers it necessary that suitable administrative action should be taken against a person engaged in examination work.

7.

Result Committee.

- The Board shall constitute a Result Committee, which shall besides its Chairman, consist of all members and Chairman of the Examination Committee. The Chairman of the Board shall be Chairman of the result Committee.

8.

Powers of the result Committee.

- The Committee shall, subject to the control of the Board have the power,

(a)

to consider, scrutinize and to approve results of the examinations conducted by the Board;

(b)

to consider and decide complaints against question papers in so far as it affects the results;

(c)

to decide cases of candidates, who fail to appear in any practical examination or written examination;

(d)

to decide cases of candidates who answer wrong papers;

(e)

to decide cases of late start of examination by the Superintendent of the Centre after scheduled commencement of the examination;

(f)

to decide cases of special arrangements made for the examination of any candidate;

(g)

to decide cases where extra time was allowed to a candidate for some unavoidable reasons;

(h)

to decide cases where question papers were opened before the prescribed hours;

(i)

to decide cases of candidates whose answer books are lost or destroyed, in transit or from the possession of the examiners;

(j)

to cancel or to declare results of candidates reported using unfair means under Regulation 29 of the Uttar Pradesh Pravidhik Shiksha (Admission, Conduct of Examination and Conferment of Certificate and Diplomas) Regulations, 1992;

and

(k)

to take such actions against Superintendents of Centres and Invigilators as it deems fit.

9.

Syllabus Committee.

- Syllabus Committee shall consist of-

(1)

Director, Technical Education, Uttar Pradesh, Kanpur

...

Chairman

(2)

Director, Institute of Research Development and Training,
Kanpur

...

Member

(3)

Chief Engineer, State Electricity Board or his representative
not below the rank of Superintending Engineer

...

Member

(4)

Chief Engineer, Jal Nigam, Uttar Pradesh, or his
representative not below the rank of Superintending Engineer

...

Member

(5)

Regional Officer, All India Council of Technical Education
Regional Office, Kanpur

...

Member

(6)

One Principal of an Affiliated Institution

...

Member

(7)

One Member of the Legislative Assembly of Uttar Pradesh from
amongst such Members of the Board

...

Member

(8)

One Member of the Legislative Council of Uttar Pradesh from
amongst such Members of the Board

...

Member

(9)

Representative of Industries nominated by the Chairman of the
Board.

...

Member

(10)

Member of the Confederation of Industries (Northern Region) of
his representative

...

Member

(11)

Representative of Institute of Non-Conventional Energy or
Pollution Control Board.

...

Member

(12)

Representative of Indian Institute of Technology, Kanpur or an
Engineering College who is a Member of the Board

...

Member

(13)

Representative of institute of Engineering and Technology,
Lucknow

...

Member

(14)

Secretary, Board of Technical Education, Uttar Pradesh,
Lucknow Secretary

...

Member/Secretary

10.

Duties of the syllabus Committee.

- The duty of the syllabus Committee shall be,-

(a)

to approve the syllabus of courses of study;

(b)

to recommend to the Board standards in respect of staff including their qualification equipment and buildings for an affiliated institution for a particular course of study and for a particular intake;

Provided that recommendations of the All India Council of Technical Education shall be adopted;

(c)

to recommend textbooks and general books in conformity with the syllabus;

(d)

to invite experts to attend its meetings and obtain their advice while considering the syllabus of any course of study, qualification of staff list of equipment or requirements of buildings;

(e)

to constitute sub-committees in such manner and for such period as it may consider necessary for detailed consideration and for recommendations in respect of any course or study or for consideration of qualification of staff list of equipment or requirements of building for any course of study under the purview of the committee if in its opinion it is necessary to do so;

Provided that in each sub-committee there shall be included at least three members of the Syllabus Committee;

Provided further that in case of any urgency the Secretary may constitute a sub-committee with the concurrence of the Chairman of the Board and shall, thereafter inform the committee at its next meeting along with the recommendations, if any of the sub-committee so constituted; and

(f)

to perform such other function as may be entrusted to it by the Board.

11.

The syllabus Committee of courses of study shall adopt the guidelines of All India Council of Technical Education in regard to the framing of syllabus of course of study.

12.

Inspection and Affiliation Committee.

(1)

Inspection and Affiliation Committee shall consist of:

(1)

Director, Institute of Research, Development and Training,
Kanpur

...

Chairman

(2)

Joint Director, Technical Education of Concerned Zone

...

Member

(3)

Four experts of Engineering and Technology

...

Member

(4)

Regional Officer, All India Council of Technical Education,
Kanpur

...

Member

(5)

One Representative of Engineering College not below the rank
of Professor

...

Member

(6)

Secretary, Board of Technical Education, Uttar Pradesh,
Lucknow

...

Member/Secretary

(2)

For the purpose of scrutiny of applications of affiliations of new institution at a preliminary stage Committee may constitute a subcommittee consisting of not less than three members which shall scrutinize and approve the applications.

13.

Duties of Inspection and Affiliation Committee.

(1)

The duties of the Inspection and Affiliation Committee shall be,-

(a)

to examine proposals on the form prescribed by the Board from time to time regarding affiliation of any new institution or any affiliated institution proposing to start a new course of study and to make recommendations for affiliation after considering as far as possible, the following points:

(i)

whether there is a demand for a particular course of study for which affiliation is sought?

(ii)

whether the proposed location of institution is satisfactory?

(iii)

whether adequate facilities near the proposed location are available to the proposed institution for power and water supply?

(iv)

whether sufficient land is available as per norms of the All India Council of Technical Education?

(v)

whether the financial resource for the purpose of the institution are adequate as per norms of the All India Council of Technical education?

(vi)

whether adequate hostel facilities in connection with the institution are available?

(vii)

whether the stall, building and equipment for running the institution or courses of study are adequate as per norms of the All India Council of Technical Education? and

(viii)

whether the authorities of the proposed institution are prepared to abide by the conditions of affiliations laid down by the Board.

(b)

to inspect if necessary, any institution seeking affiliation or any affiliated institution seeking permission to start any additional course of study and to make recommendations for it.

(2)

Whenever an inspection is carried out as laid down in sub-clause (b) of Clause (1), the inspection report shall be reduced to writing and shall be sent to the Chairman.

14.

Conditions for affiliation.

- The following shall be the conditions for affiliation of an institution under these regulations,-

(a)

it shall be open to inspection by the committee;

(b)

it shall submit all information and return called for by the Board or its committee on the prescribed Form;

(c)

it shall make suitable arrangements for the health, recreation and supervision of the boarders and for the sanitation on its premises;

(d)

it shall, on demand by the Board place its staff, buildings and furniture, at the disposal of the Board for conducting Board's examination;

(e)

it shall provide the facilities of staff buildings, equipment, workshop library as per standard prescribed by the Board and maintain the same and shall furnish all such information and facilities as may be required by the Board from time to time for inspection;

(f)

it shall not seek affiliation of any other Board or any other examining body conducting diploma examinations in Engineering, Technology or any other branch for which the Board conducts examinations and awards diplomas;

(g)

it shall follow the syllabus of courses of study as may be approved by the Board; and

(h)

it shall not start any new course of study without the prior permission of the State Government.

15.

Recognition Committee.

- The Board shall also constitute a Recognition Committee which shall consist of,-

(1)

Director, Technical Education, Uttar Pradesh, Kanpur

...

Chairman

(2)

Director, Institute of Research and Development Training,
Kanpur

...

Member

(3)

Chief Engineer, Public Works Department or his representative
not below the rank of Superintending Engineer

...

Member

(4)

Chief Engineer, State Electricity Board or his representative

not below the rank of Superintending Engineer

...

Member

(5)

Chief Engineer, Jal Nigam, Uttar Pradesh, or his
representative not below the rank of Superintending Engineer

...

Member

(6)

Regional Officer, All India Council of Technical Education,
Regional Office, Kanpur

...

Member

(7)

One Member of the Legislative Assembly, Uttar Pradesh from
amongst such Members of the Board

...

Member

(8)

Director Electricity Safety, Uttar Pradesh, Lucknow

...

Member

(9)

One Principal of the Polytechnic from amongst such Members of
the Board

...

Member

(10)

Secretary, Board of Technical Education, Uttar Pradesh,
Lucknow

...

Member/ ... Secretary

(2)

Whenever any reference regarding the recognition of any course of study or Institution is made to it, the Recognition Committee shall make its recommendation for consideration of the Board. The Committee may constitute a sub-committee of not less than three members to scrutinize the application for recognition on the same grounds as specified in Regulation 14.

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